

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN ESWATINI

INTRODUCTION & FRAMEWORK

This guide must begin with unusual honesty and unusual caution, because Eswatini is among the hardest and most dangerous places in this whole series to oppose a project, and there is no grassroots victory to point to. Eswatini is an absolute monarchy: the King has reigned since 1986, the Parliament and the judiciary are subservient to the throne, most of the land is Swazi Nation Land vested in the King in trust and allocated by chiefs who owe their allegiance to him, and ordinary people have little security of tenure and little democratic voice. When a community's land is taken — for a plantation, a mine, a foreign investor's project, or simply because a landowner or authority reclaims it — residents' legal challenges are, in the words of human-rights monitors, shuffled endlessly between ministries, chiefdoms, and courts, and families face eviction with nowhere to go. And when Swazis have taken to the streets, as in the pro-democracy protests that began in June 2021, the state has answered with lethal force — with shootings, beatings, and, monitors reported, deaths. This guide will not pretend a safe or easy path exists where it does not, and the protection of anyone involved is its first and governing principle.

Those who would defend a community's land in Eswatini cannot rely on the captured domestic institutions, but the external tools are real, and Swazi communities have used them. The distinctive lever is the **African Commission on Human and Peoples' Rights**, which can hear a community that its own captured institutions will not, as Swazi communities have shown by taking their evictions to it. The **surviving courts**, subservient though the system is, still hear land and eviction challenges, however delayed — a real if uncertain channel. **Regional and international pressure** — from the African Union, SADC, the Commonwealth, the EU, the donors, the trade preferences, and Eswatini's watching neighbours — applies pressure the crown feels. The **diaspora and international solidarity** carry the case from safety, while **rigorous documentation** grounds it all. But these tools have grave limits, and this guide states them plainly — indeed the gravest in this whole series. Opposition in Eswatini can be met with violence: the 2021 protests were met with live fire, activists face harassment, detention, and abuse, pro-democracy figures have been driven into exile, and even workers travelling to a protest were, monitors reported, stopped and beaten. Land tenure is insecure, the institutions subservient to the throne, and the space for open opposition minimal and hazardous. The honest record is evictions that proceed, protests met with force, and legal challenges endlessly delayed — not communities stopping projects. And no one can be exposed to that danger. So the work must be documentary, legal, external, collective, and above all protected — never letting a single named person carry a public burden that could make them a target, using collective, external, and diaspora voice instead, and seeking the shield of human-rights monitors and international bodies. And the honest prize is protection, redress, and accountability sought through the external bodies — not a project stopped, and never at the cost of a life.

The Whole Strategy in One Idea

You cannot safely oppose a project through Eswatini's captured domestic institutions, and you must never expose a person to a state that has answered dissent with live fire. What can be done is to act from outside and in safety: document the harm, use the courts where they still function, and above all reach the African Commission and the regional and international bodies that can hear a community the crown will not — collectively, externally, and protecting every person above all else.

Be Honest About Which Fight You're In

Eswatini is the most dangerous setting in this guide, and honesty about that is the first and gravest discipline. This is not a fight you win inside — the institutions are captured, the tenure insecure, and open dissent can be met with violence. The honest record is one of evictions that proceed and protests met with force, not of communities stopping projects. So the realistic aim is protection, redress, and accountability sought through the external bodies — the African Commission, the courts where they act, international pressure — pursued collectively and from safety, and never at the cost of a person's life or liberty.

HOW THE SYSTEM WORKS

Who Actually Decides

The domestic institutions all answer, in the end, to the crown: the **King**, in whom most land is vested; the **chiefs** who allocate it and owe him allegiance; the **Parliament and judiciary**, subservient to the throne. Domestic decisions over land and projects run through these captured channels. The decisions a community can actually reach are external: the **African Commission on Human and Peoples' Rights**, the **regional and international bodies** (the AU, SADC, the Commonwealth, the EU), the **donors and trade partners**, and the **surviving courts**. Map who decides — and which external body can be reached in safety — before acting.

How a Project Moves — and Where You Jump In

An eviction or project proceeds through the chiefs, ministries, and captured courts, where a community's challenge is endlessly shuffled and delayed. You enter not by trusting that domestic process but by documenting the harm and taking it outward: to the African Commission, which can hear the case; to the surviving courts, where they still act; to the regional and international bodies and donors who apply pressure. The entry point is always the external one, reached carefully and collectively.

Follow the Money and the Permissions

Follow the land: whether it is Swazi Nation Land vested in the King, who allocated or reclaimed it, and for whom. Follow the investor: which plantation, mine, or foreign project drives the eviction, and what donor, trade, or reputational ties it has. Follow the pressure points: which regional and international bodies, donors, and trade preferences the crown feels. The leverage lies in the African Commission, the surviving courts, and the external pressure.

Who's Supposed to Be Watching

Domestic oversight is captured. The watchers a community can engage are external: the African Commission on Human and Peoples' Rights, the regional bodies (the AU, SADC, the Commonwealth), the EU and the donors, the international human-rights monitors, and the diaspora. These are the institutions a careful, external case is built to reach — and which can, at times, shield those at risk.

QUICK REFERENCE: SUCCESS RATES

No Eswatini effort easily stops a project, and honesty requires saying so plainly — the record is of evictions that proceed and protests met with force. What the external tools can realistically deliver is protection, redress, and accountability: a case heard by the African Commission, an eviction challenged in a surviving court, international and regional pressure brought to bear, a community sheltered by human-rights monitors.

The single most decisive move is **reaching the African Commission and the external bodies with documented harm**, because they can hear a community the captured domestic institutions will not, and because they are both safer and stronger than any exposed domestic action. The African Commission is the distinctive lever; the surviving courts an uncertain but real channel; the regional and donor pressure the crown's felt weakness. And nothing is worth a life.

STEP 1: TARGET IDENTIFICATION

Ask five questions. **What is the harm?** — the eviction, the land taken, the plantation, mine, or investor project. **Who decided it?** — the chief, the crown, the ministry, the investor. **Which external body can hear it?** — the African Commission, a surviving court, a regional or donor channel. **What pressure does the crown feel?** — the donors, trade preferences, regional and international standing. **How is everyone kept safe?** — the first and overriding question, answered by acting collectively, externally, and exposing no one. Pick the harm where an external body can be reached in safety.

STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

Build the case in layers, safely and collectively. **Layer one: the harm** — the eviction, the land taken, the families displaced, the project's footprint, documented carefully. **Layer two: the rights and the record** — the insecure tenure, the endlessly delayed challenges, the human-rights standards the eviction breaches, the record monitors have kept. **Layer three: the external channel and the protection** — which body — the African Commission, a court, a regional or donor channel — to reach, and the absolute discipline of never letting a named person carry a public burden that could make them a target. A case built collectively and documentarily, carried to the external bodies, is safer and stronger than any exposed domestic stand.

WHAT TO GATHER, AND WHERE TO FIND IT

Gather the **harm record**: the eviction notices, the land taken, the families displaced, the project's footprint, documented with care. Gather the **rights record**: the tenure insecurity, the delayed challenges, the human-rights standards breached, the monitors' reports. Gather the **pressure record**: the investor's donor, trade, and reputational ties, and the regional and international bodies that can act. Gather the **channel record**: the African Commission's process, the surviving courts, the regional and donor bodies, the diaspora and monitors. Gather the **safety discipline**: confirm the work is collective, external, and exposes no one.

STEP 3: BUILDING COLLECTIVE AND EXTERNAL VOICE

Because no individual can safely carry a public burden, the effort here must be collective and external. Build with the **affected community as a whole**, so no single person is the target; the **regional and international human-rights organisations and monitors** who can document and shield; the **diaspora and solidarity networks** who carry the case from safety; and the **legal counsel** who can reach the surviving courts and the African Commission. Frame everything collectively and externally; never let one named person bear the exposure; and seek the protection of the monitors and bodies who can shield those at risk.

STEP 4: THE AFRICAN COMMISSION, THE COURTS & INTERNATIONAL PRESSURE — CONTESTING THE HARM FROM

OUTSIDE

Set expectations honestly: the levers are external, uncertain, and slow, in the most dangerous setting in this guide, so the prize is protection, redress, and accountability, not a stop.

The African Commission

The distinctive lever is the **African Commission on Human and Peoples' Rights**, which can hear a community that its own captured institutions will not — as Swazi communities have shown by taking their evictions to it. Document the harm and bring it, collectively, before the Commission.

The Surviving Courts

The **courts**, subservient though the system is, still hear land and eviction challenges, however delayed — a real if uncertain channel. Through counsel, and without exposing individuals, a challenge can be pursued where the courts still act.

The Regional, Donor, and Diaspora Pressure

Regional and international pressure — the AU, SADC, the Commonwealth, the EU, the donors, the trade preferences, and the neighbours — applies pressure the crown feels, and the **diaspora and solidarity** carry the case from safety. Pursued together — the African Commission, the surviving courts, and the external pressure — these levers seek protection and accountability from outside, while every person is protected above all else.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Tailor the case to each external audience. **For the African Commission**: here is a community its own institutions will not hear, and the rights the eviction breaches. **For the surviving courts**: here is the land taken and the challenge the law should hear. **For the regional bodies and donors**: here is conduct that strains the standards and preferences you uphold. **For the diaspora and monitors**: here is the documented harm to carry and shield. **The golden rule**: keep everything collective, external, and documentary; never expose a named individual; and seek the protection of the monitors and bodies — safety before every other consideration.

STEP 5: MEDIA STRATEGY

Media must be handled with the greatest care, in the most dangerous setting in this guide. Favour **external and diaspora voice**, and collective rather than individual exposure; frame the story around the eviction and the human-rights record, carried by regional and international outlets and monitors, never by an exposed local individual. A few cautions govern everything: never let a named person become a target; keep it collective and external; seek the shield of human-rights monitors; and let the documented harm and the external bodies carry the weight. If any step raises the risk to a person, stop.

EMAILS & LETTERS

Keep every message collective, external, documentary, and absolutely protective of individuals.

8A — To the African Commission on Human and Peoples' Rights: set out the eviction, the rights breached, and the domestic institutions' failure to hear it.

8B — To a surviving court (through counsel): establish the land taken and the challenge the law should hear.

8C — To a regional body (AU, SADC, Commonwealth): describe the harm and request engagement.

8D — To the EU or a donor: flag conduct that strains the standards and preferences you uphold.

8E — To a human-rights monitor: request documentation and, where possible, protection for those at risk.

8F — To a diaspora or solidarity network: share the collective case and ask for external voice.

8G — To legal counsel: request the African Commission filing or the court challenge.

8H — To the international public: summarise the eviction and the human-rights record — collectively — and ask for pressure, exposing no one.

IF YOU HAVE LITTLE TIME: THE RAPID-FIRE VERSION

The first 48 hours: document the eviction or harm carefully and collectively; identify the external body to reach — usually the African Commission or a monitor; write the one-page collective case. **The fastest-moving levers:** the African Commission, the human-rights monitors, and the regional and donor pressure. **Emergency action:** if an eviction is imminent, reach the human-rights monitors and the African Commission's channels first — they can document and sometimes shield. Throughout, keep it collective and external, and expose no one.

WHEN THE SYSTEM IS TILTED

The field here is not merely tilted but captured and dangerous: the institutions answer to the crown, and dissent has been met with live fire. Recognise it plainly and adjust the aim — not a stop, but protection, redress, and accountability through the external levers the capture cannot reach. Lean on the African Commission, the surviving courts, the regional and donor pressure, and the monitors. And accept the honest record — evictions that proceed, protests met with force — while still seeking protection and accountability from outside, and protecting, above all, the people.

WHEN IT'S ACTUAL CORRUPTION — AND WHO BENEFITS

Here the capture is the system: land vested in the crown, allocated by chiefs who owe it allegiance, taken for investors while challenges are endlessly delayed. Where a project serves the powerful, respond only through the **external channels:** the African Commission, the regional bodies and donors, the surviving courts, the documented record. Never through exposed domestic action. **On safety and care:** this is the guide's most important note, and it governs everything. Eswatini has met dissent with live fire, beatings, detention, and death — the gravest danger in this whole series. Keep the effort documentary, legal, external, collective, and above all protected; prefer the courts and external bodies to any exposed domestic action; never let a named person carry a public burden that could make them a target; seek the shield of human-rights monitors and international bodies; and if any step raises the risk to a person, stop. Safety before everything.

INTEGRATION & TIMELINE: RUNNING ALL FIVE STEPS TOGETHER

The steps run in parallel, collectively and externally. The documented harm feeds the African Commission case, the court challenge, and the regional and donor pressure at once; the community, monitors, and diaspora organise the collective, protected voice; any media stays external and collective throughout. A rough timeline: **weeks one to four**, document the harm safely and reach the monitors and the African Commission's channels; **months two to six**, pursue the Commission, the surviving courts, and the regional and donor pressure; **beyond**, sustain the external accountability and the protection of those at risk. The core discipline: collective, external, documentary, and absolute in protecting every person.

FINAL ASSESSMENT

Eswatini is the most dangerous ground in this guide, and this guide does not pretend otherwise. It does not claim a project can be safely stopped inside, or that the institutions are fair, or that a grassroots victory exists — none of that is true, and the record is of evictions that proceed and dissent met with live fire. What it claims is narrow and real: that a community the crown's captured institutions will not hear can be heard by the African Commission on Human and Peoples' Rights, as Swazi communities have shown; that the surviving courts still hear land and eviction challenges, however delayed; that the region, the donors, and the trade preferences apply pressure the crown feels; and that all of this can be pursued collectively and from safety, through the diaspora and the monitors, without exposing a single person to a state that has answered dissent with force. The levers are external, uncertain, and slow, and the prize is protection, redress, and accountability — not a stop, and never at the cost of a life. In an absolute monarchy where the domestic channels are captured and dangerous, that collective, external, protected work — safety before everything — is not a lesser ambition. It is the only responsible one.